

STATE OF NEW YORK

3485--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 28, 2025

Introduced by M. of A. GONZALEZ-ROJAS, GALLAGHER, SAYEGH, LEVENBERG, SCHIAVONI, ZACCARO, GRIFFIN, WOERNER, KASSAY -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to establishing a sex trafficking awareness and prevention program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 224-b to read as follows:

3 § 224-b. Sex trafficking awareness and prevention program. (a) The
4 commissioner, in conjunction with the interagency task force on human
5 trafficking, the commissioner of the division of criminal justice
6 services and the commissioner of transportation, shall implement a sex
7 trafficking awareness and prevention program within the curriculum
8 requirements for all commercial driver licenses. The sex trafficking
9 awareness and prevention program shall be established for the purpose of
10 providing education and awareness for the prevention of sex trafficking
11 in this state. The program curriculum shall utilize existing materials
12 from a nationally recognized anti-trafficking organization. The program
13 shall provide education and awareness literature and educational materi-
14 als to all trade schools, community colleges, agencies, public or
15 private schools or persons offering instruction in the operation of
16 commercial motor vehicles. The program shall include a minimum of thirty
17 minutes of training. The materials shall include, but not be limited to,
18 warning signs of potential sex trafficking and entities to whom a driver
19 may report suspected activity that might constitute sex trafficking.
20 The commissioner may coordinate with the interagency task force on human
21 trafficking in providing relevant literature and materials to such trade
22 schools, community colleges, agencies, public or private schools or
23 persons offering instruction in the operation of commercial motor vehi-
24 cles.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(b) The commissioner may additionally coordinate with the interagency task force on human trafficking: (i) to collect and organize data on the nature and extent of trafficking in persons in the state; (ii) to identify available federal, state and local programs to provide services to victims of trafficking; (iii) to consult with governmental and non-governmental organizations in developing recommendations to strengthen state and local efforts to prevent trafficking; (iv) to measure and evaluate the state's progress in preventing trafficking, and prosecuting persons engaged in trafficking; and (v) to evaluate the effectiveness of the sex trafficking awareness and prevention program.

(c) The commissioner shall report annually on the program's effectiveness in its annual report.

(d) For purposes of this section, "interagency task force on human trafficking" shall mean the interagency task force on human trafficking established by section four hundred eighty-three-ee of the social services law.

(e) To effectuate the purposes of this section, the commissioner may request and shall receive from any department, division, board, bureau, commission or other agency of the state or any state public authority such assistance, information and data as will enable the sex trafficking awareness and prevention program to properly carry out its powers and duties.

§ 2. Subdivision 1 of section 502 of the vehicle and traffic law, as separately amended by chapters 158 and 440 of the laws of 2021, is amended to read as follows:

1. Application for license. Application for a driver's license shall be made to the commissioner. The fee prescribed by law may be submitted with such application. The applicant shall furnish such proof of identity, age, and fitness as may be required by the commissioner. With respect to a non-commercial driver's license or learner's permit which does not meet federal standards for identification, in addition to the acceptable proofs of age and identity approved by the commissioner as of January first, two thousand nineteen, acceptable proof of identity shall also include, but not be limited to, a valid, unexpired foreign passport issued by the applicant's country of citizenship (which shall also be eligible as proof of age), a valid, unexpired consular identification document issued by a consulate from the applicant's country of citizenship, or a valid foreign driver's license that includes a photo image of the applicant and which is unexpired or expired for less than twenty-four months of its date of expiration, as primary forms of such proof. Nothing contained in this subdivision shall be deemed to preclude the commissioner from approving additional proofs of identity and age. The license shall display the sex designation of M, F, or X as certified by the applicant, with no additional documentation required. The applicant may amend the sex designation of their driver's license upon request. Upon amendment of the sex designation, the change shall be made consistent through all affiliated records within the control of the department. The commissioner may also provide that the application procedure shall include the taking of a photo image or images of the applicant in accordance with rules and regulations prescribed by the commissioner. In addition, the commissioner also shall require that the applicant provide such applicant's social security number or, in lieu thereof, with respect to an application for a non-commercial driver's license or learner's permit which does not meet federal standards for identification, an affidavit signed by such applicant that they have not been issued a social security number. The commissioner also shall provide

1 space on the application so that the applicant may request a notation
2 upon such license that such applicant is a veteran of the United States
3 armed forces, and space on the application so that the applicant may
4 request a notation upon such license that ~~[he or she]~~ such applicant is
5 a veteran of the United States armed forces, and space on the applica-
6 tion so that the applicant may register in the New York state organ and
7 tissue donor registry under section forty-three hundred ten of the
8 public health law with the following stated on the application in clear
9 and conspicuous type:

10 "You must fill out the following section: Would you like to be added
11 to the Donate Life Registry? Check box for 'yes' or 'skip this ques-
12 tion'."

13 The commissioner of health shall not maintain records of any person
14 who checks "skip this question". Except where the application is made in
15 person or electronically, failure to check a box shall not impair the
16 validity of an application, and failure to check "yes" or checking "skip
17 this question" shall not be construed to imply a wish not to donate. In
18 the case of an applicant under eighteen years of age, checking "yes"
19 shall not constitute consent to make an anatomical gift or registration
20 in the donate life registry, except as otherwise provided pursuant to
21 the provisions of paragraph (b) of subdivision one of section forty-
22 three hundred one of the public health law. Where an applicant has
23 previously consented to make an anatomical gift or registered in the
24 donate life registry, checking "skip this question" or failing to check
25 a box shall not impair that consent or registration. In addition, an
26 applicant for a commercial driver's license who will operate a commer-
27 cial motor vehicle in interstate commerce shall certify that such appli-
28 cant meets the requirements to operate a commercial motor vehicle, as
29 set forth in public law 99-570, title XII, and title 49 of the code of
30 federal regulations, and all regulations promulgated by the United
31 States secretary of transportation under the hazardous materials trans-
32 portation act. In addition, an applicant for a commercial driver's
33 license shall submit a medical certificate at such intervals as required
34 by the federal motor carrier safety improvement act of 1999 and Part
35 383.71(h) of title 49 of the code of federal regulations relating to
36 medical certification and in a manner prescribed by the commissioner.
37 For purposes of this section and sections five hundred three, five
38 hundred ten-a, and five hundred ten-aa of this title, the terms "medical
39 certificate" and "medical certification" shall mean a form substantially
40 in compliance with the form set forth in Part 391.43(h) of title 49 of
41 the code of federal regulations. Upon a determination that the holder of
42 a commercial driver's license has made any false statement, with respect
43 to the application for such license, the commissioner shall revoke such
44 license. In addition, an applicant for a commercial driver's license
45 shall submit a certificate for completing the sex trafficking awareness
46 and prevention program established under section two hundred twenty-
47 four-b of this chapter.

48 § 3. This act shall take effect on the ninetieth day after it shall
49 have become a law; provided, however, subdivision (c) of section 224-b
50 of the vehicle and traffic law, as added by section one of this act and
51 section two of this act, shall take effect on the one hundred eightieth
52 day after it shall have become a law. Effective immediately, the addi-
53 tion, amendment and/or repeal of any rule or regulation necessary for
54 the implementation of this act on its effective date are authorized to
55 be made and completed on or before such effective date.